

Court No. - 39

Case :- WRIT - C No. - 1286 of 2019

Petitioner :- Zuberi Fibers Private Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Hanuman Prasad Dube, Irshad Husain, Vipul Dube

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri H.P. Dubey, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondents no.2 and 3 and learned Standing Counsel for the respondents no. 1, 4 and 5.

The petitioner is seeking quashing of the recovery citation dated 14.12.2018 issued by the respondent no.5 whereby recovery of Rs. 2,96,29,235/- has been sought to be recovered from the petitioner towards arrears of electricity dues with a further prayer to direct the respondent no.3 to correct the electricity bills.

In paragraph nos. 23 of the writ petition, it is stated that the petitioner-company is in great financial distress and that the petitioner is not in a position to deposit the entire amount at once and therefore, installments may be fixed under clause 6.14 of the Electricity Supply Code, 2005 (hereinafter to be referred to as "the Code"). Learned counsel has further submitted that the amount of Rs. 70 lacs has already been deposited by the petitioner, as has been stated in paragraph nos. 17, 18 and 19 of the writ petition.

We therefore, dispose of the writ petition with a direction that if the petitioner approaches the respondent no.3 Executive Engineer, Electricity Distribution Division-III Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh along with a certified copy of this order as well as proposal to deposit the entire amount pursuant to the recovery citation within 10 days from today, the respondent no.3 shall consider the petitioner's application in accordance with law, considering the provisions of clause 6.14 of the Code and thereafter, the respondent no.3 shall pass fresh order within a further period of 15 days.

Subject to the condition that the petitioner files an application before the respondent no.3 by 28.01.2019, the recovery citation dated 14.12.2018 shall remain in abeyance and shall be subject

to any final order which may be passed by the respondent no.3 Executive Engineer, Electricity Distribution Division-III Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh.

After passing of the aforesaid order, learned counsel for the petitioner submitted that the electricity bill requires correction, therefore respondent no.3 may also be directed to consider the matter for correction of the bills under clause 6.5 of the Code.

Counsel for the respondent nos. 2 and 3 then argued that in case, the petitioner deposits certain amount pursuant to the recovery citation, he has no objection in looking into the grievance of the petitioner regarding correction of the bill.

It is further directed that in case, the petitioner deposits 40% of the citation amount on or before 01.03.2019 before the respondent no.3 Executive Engineer, Electricity Distribution Division-III Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh and further gives an undertaking to deposit remaining amount as decided by the respondent no.3 considering the provisions of Section 6.14 of the Code, the respondent no.3 shall also consider the grievance of the petitioner with regard to correction of the electricity bills under clause 6.5 of the Code.

Subject to the above conditions being satisfied, no collection charges shall be recovered from the petitioner.

Order Date :- 17.1.2019

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